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How Do I Request Premium Processing?

i ALERT: Starting June 13, 2023, applicants who want to change to [F-1, F-2, M-1, M-2, J-1, or J-2 status](#) and, who have a **pending** [Form I-539, Application to Extend/Change Nonimmigrant Status](#), may request a premium processing upgrade by filing [Form I-907, Request for Premium Processing](#), **without filing a new** Form I-539, online or by mail with the Elgin Lockbox. For the correct filing location, visit uscis.gov/i-907.

Starting June 26, 2023, applicants who want to change to F-1, F-2, M-1, M-2, J-1, or J-2 status and, who do not already have a pending Form I-539, may file Form I-539 **together with** Form I-907 when filing online or by mail with our Montclair address.

[Read more here: USCIS Expands Premium Processing for Applicants Seeking to Change into Certain F, M or J Nonimmigrant Status.](#)

i ALERT: Starting April 3, 2023, certain [F-1 students seeking Optional Practical Training \(OPT\)](#) and [F-1 students seeking science, technology, engineering, and mathematics \(STEM\) OPT extensions](#) may file [Form I-765, Application for Employment Authorization](#), together with Form I-907 when filing online or by mail.

As of March 6, 2023, certain [F-1 students seeking Optional Practical Training \(OPT\)](#) and [F-1 students seeking science, technology, engineering, and mathematics \(STEM\) OPT extensions](#) who have a pending [Form I-765, Application for Employment Authorization](#), and wish to request a premium processing upgrade, can file their Form I-907 online.

We will adjudicate premium processing requests for certain eligible and properly filed Forms I-539 and I-765 within the 30-day time frame specified by Congress.

After any I-765 is approved, your EAD card should be produced within two weeks. We will mail your EAD card via U.S. Postal Service (USPS) Priority Mail. The time frame for receiving your EAD card may vary, depending on USPS delivery times. Please allow 30 days from approval before inquiring with USCIS. We encourage you to track delivery of your card. If you do not receive your EAD card, please visit [e-Request - Self Service Tools \(uscis.gov\)](#) for instructions on how to submit an inquiry.

Additional information is available in the Where to File section of the [Form I-907](#) page.

What is it?



Need Help?
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Premium processing provides expedited processing for the following forms:

- Form I-129, Petition for a Nonimmigrant Worker;
- Form I-140, Immigrant Petition for Alien Worker;
- Form I-765, Application for Employment Authorization; and
- Form I-539, Application to Extend/Change Nonimmigrant Status.

There is a fee to request this service. If you request premium processing, we guarantee that we will take adjudicative action on the case, as described below, within the time periods described below, or we will refund the premium processing fee:

- 15 business days for most classifications;
- 30 business days for Form I-765;
- 30 business days for Form I-539 applicants requesting a change of status to F-1, F-2, M-1, M-2, J-1 or J-2 nonimmigrant status, once all prerequisites have been met;
- 45 business days for Form I-140 E13 multinational executive and manager and Form I-140 E21 national interest waiver classifications

Please refer to the charts below for all processing times as new categories become available.

The associated time period begins when we receive a properly completed [Form I-907, Request for Premium Processing Service](#), at the correct filing address. To be considered “properly completed,” a petition or application must have the information required by the form instructions, a valid signature, and the correct filing fee, as specified in the USCIS [Fee Schedule](#). Within the associated time period, we will take one of the following actions on the case: issue an approval notice, denial notice, notice of intent to deny, or a request of evidence; or open an investigation for fraud or misrepresentation.

If the petition or application requires the submission of additional evidence or a response to a notice of intent to deny, the 15-, 30-, or 45-day premium processing time period will stop and reset. A new premium processing time period will begin when we receive a response to the request for evidence or notice of intent to deny.

Who is eligible?

The charts below list the forms, designated classifications within each form type, and current availability and termination dates (when applicable) for premium processing service.

Petitioners filing Form I-129 requesting a change or an initial grant of status for beneficiaries within the Commonwealth of the Northern Mariana Islands are not eligible for premium processing service.

H-1B, H-2B, and certain H-3 classifications may have annual numerical limit (“cap”) restrictions. We recommend you verify whether a cap is applicable to your filing and whether that cap has been met. Filing Form I-907 does not give special cap benefits to you. (See “How will USCIS manage those categories that have an annual limit in relation to this faster processing?” below.)

Form I-129, Petition for a Nonimmigrant Worker – adjudicative action to be taken within 15 business days

Designated Classification Within Form I-129	Corresponding Nonimmigrant Classification	Availability Date ¹	Termination Date ²
Treaty trader	E-1	June 1, 2001	
Treaty investor	E-2	June 1, 2001	
Certain Specialty Occupation Professionals from Australia	E-3	Feb. 24, 2021	
Specialty occupation workers	H-1B	July 30, 2001	
Temporary worker performing nonagricultural services	H-2B	June 1, 2001	
Trainee or special education exchange visitor	H-3	June 1, 2001	
Intracompany transferee, executive or manager capacity	L-1A	June 1, 2001	
Intracompany transferee, specialized knowledge professional	L-1B	June 1, 2001	
A petitioner meeting certain requirements which seeks continuous approval of itself and some or all of its parents, branches, subsidiaries, and affiliates	LZ (Blanket L-1)	June 1, 2001	
Individuals with extraordinary ability or achievements	O-1	June 1, 2001	
Essential Support Personnel performing services for a principal O-1 nonimmigrant	O-2	June 1, 2001	
Internationally recognized athlete or member of an internationally recognized entertainment group	P-1	June 1, 2001	

Designated Classification Within Form I-129	Corresponding Nonimmigrant Classification	Availability Date ¹	Termination Date ²
Essential Support Personnel who performs support services essential to the successful performance of the principal P-1 nonimmigrant	P-1S	June 1, 2001	
Artist or entertainer under a reciprocal exchange program	P-2	June 1, 2001	
Essential Support Personnel, who performs support services essential to the successful performance of the principal P-2 nonimmigrant	P-2S	June 1, 2001	
Artist or entertainer in a culturally unique program	P-3	June 1, 2001	
Essential Support Personnel, who performs support services essential to the successful performance of the principal P-3 nonimmigrant	P-3S	June 1, 2001	
International cultural exchange alien	Q-1	June 1, 2001	
Alien in a religious occupation	R-1	July 30, 2001 and reinstated July 20, 2009 ³	
NAFTA professional, Canada	TN-1	July 30, 2001	
NAFTA professional, Mexico	TN-2	July 30, 2001	

¹ The availability date is the date that the classification was initially deemed eligible for premium processing.

² The termination date reflects the last day that we accepted premium processing filings requesting that specific classification. If a date is entered in this column, that classification is currently ineligible for premium processing.

³ We initially suspended premium processing for nonimmigrant religious worker visa petitions on Nov. 28, 2006. On July 20, 2009, we started accepting Form I-907 for I-129 petitions seeking R-1 classification.

Form I-140, Immigrant Petition for Alien Worker – adjudicative action to be taken within 15 business days

Designated Classification Within Form I-140	Corresponding Employment-Based (EB) Immigrant Visa Classification	Availability Date¹	Termination Date²
Aliens of extraordinary ability	E11	Nov. 13, 2006, and reinstated June 29, 2009 ³	
Outstanding professors and researchers	E12	Sept. 25, 2006, and reinstated June 29, 2009 ³	
Members of professions with advanced degrees or exceptional ability not seeking a National Interest Waiver	E21	Sept. 25, 2006, and reinstated June 29, 2009 ³	
Skilled workers ⁴	E31	Aug. 28, 2006, and reinstated June 29, 2009 ³	
Professionals ⁴	E32	Aug. 28, 2006, and reinstated June 29, 2009 ³	
Workers other than skilled workers and professionals	EW3	Sept. 25, 2006, and reinstated June 29, 2009 ³	

Form I-140, Immigrant Petition for Alien Worker-adjudicative action to be taken within 45 business days

Designated Classification Within Form I-140	Corresponding Employment-Based (EB) Immigrant Visa Classification	Availability Date¹	Termination Date²
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Designated Classification Within Form I-140	Corresponding Employment-Based (EB) Immigrant Visa Classification	Availability Date ¹	Termination Date ²
Multinational executives and managers	E13	As of Jan. 30, 2023, all pending and initial Form I-140 petitions under an E13 multinational executive and manager classification are eligible to request premium processing.	
Members of professions with advanced degrees or exceptional ability seeking a national interest waiver	E21	As of Jan. 30, 2023, all pending and initial Form I-140 petitions under an E21 NIW classification are eligible to request premium processing.	

¹ The availability date is the date that the classification was initially deemed eligible for premium processing.

² The termination date reflects the last day that we accepted filings requesting that specific classification. If a date is entered in this column, that classification is currently ineligible for premium processing.

³ On July 2, 2007, we temporarily suspended premium processing for Form I-140, Immigrant Petition for Alien Worker, in accordance with 8 CFR 103.2(f)(2). However, after an evaluation of our Form I-140 backlog reduction efforts and increased Form I-140 adjudicative efficiencies, we concluded that as of June 29, 2009, we would reinstate premium processing for this benefit.

⁴ If designated as available. Please see the section on additional conditions placed on premium processing availability.

Form I-765, Application for Employment Authorization - adjudicative action to be taken within 30 business days

Form I-765 Category	Description	Availability Date	Termination Date
(c)(3)(A)	F-1 student, pre-completion Optional Practical Training	Please refer to the upgrade chart below for pending and concurrently filed applications.	
(c)(3)(B)	F-1 student, post-completion Optional Practical Training	Please refer to the upgrade chart below for pending and concurrently filed applications.	

Form I-765 Category	Description	Availability Date	Termination Date
(c)(3)(C)	F-1 student, 24-month extension for STEM Optional Practical Training	Please refer to the upgrade chart below for pending and concurrently filed applications.	

Designated Classification Within Form I-539	Corresponding Nonimmigrant Visa Classification	Availability Date	Termination Date
Academic Student or Dependent of F-1	F-1, F-2	Please refer to the upgrade chart below for pending and concurrently filed applications.	
Vocational Student or Dependent of M-1	M-1, M-2	Please refer to the upgrade chart below for pending and concurrently filed applications.	
Exchange Visitor or Dependent of J-1	J-1, J-2	Please refer to the upgrade chart below for pending and concurrently filed applications.	

Premium Processing for E13 Multinational Executives and Managers or E21 with National Interest Waiver

Beginning June 1, 2022, we began phasing in premium processing for E13 multinational executives and managers. On July 1, 2022, we began phasing in E21 petitions seeking a national interest waiver (NIW) and additional E13 multinational executive and manager petitions. As of Jan. 30, 2023, all pending and initial Form I-140 petitions under an E13 multinational executive and manager classification and E21 NIW classification are eligible to request premium processing.

Premium Processing for F-1 Students Seeking OPT and STEM OPT extensions

Beginning March 6, 2023, we began phasing in premium processing for F-1 students seeking optional practical training (OPT) and STEM OPT extensions. As of April 3, 2023, all pending and initial Form I-765 petitions filed by F-1 students in these categories are eligible to request premium processing. [Online filing](#) of Form I-907 is also available to F-1 students in these categories.

We will adjudicate premium processing requests for certain eligible and properly filed Forms I-539 and I-765 within the 30-day time frame specified by Congress.

After any I-765 is approved, your EAD card should be produced within two weeks. Your EAD card will be mailed via U.S. Postal Service (USPS) Informed Delivery. The time frame in which you will receive your EAD card may vary, depending on USPS delivery times. Please allow a total of 30 days from approval before inquiring with us. We encourage you to [track delivery of your card](#). If you do not receive your EAD card, please visit [e-Request - Self Service Tools \(uscis.gov\)](#) for instructions on how to submit an inquiry.

Premium Processing for Form I-539 Applicants Seeking to Change to F-1, F-2, M-1, M-2, J-1, or J-2 Nonimmigrant Status

On June 13, 2023 we began phasing in premium processing for applicants seeking a change of status to F-1, F-2, M-1, M-2, J-1, or J-2 status, who have a pending Form I-539, Application to Extend/Change Nonimmigrant Status. [Online filing](#) of Form I-907 is also available to these applicants. Please refer to the chart below regarding the upgrade schedule and when new applications may be filed with the request for premium processing.

Form I-539 Upgrade Schedule

Start Date	Corresponding USCIS Form Type
June 13, 2023	Pending Form I-539 requesting a change of status to F-1, F-2, M-1, M-2, J-1, or J-2 nonimmigrant status
June 26, 2023	Form I-539 requesting a change of status to F-1, F-2, M-1, M-2, J-1, or J-2 nonimmigrant status filed together with Form I-907

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Can the beneficiary of a visa petition seek premium processing?	▼
How do I verify that I am using the current version of the form?	▼
How do I file a request for premium processing?	▼
Can I file a premium processing request online?	▼
Is USCIS placing any conditions of availability on premium processing for Form I-140 petitions?	▼

What is the fee for this service?	▼
Does this program have any effect on USCIS’ previous expedite practices?	▼
How will USCIS manage those categories that have an annual limit in relation to this faster processing?	▼
Can I contact a USCIS service center if I have not filed a request for premium processing but have questions about the program?	▼
How do I contact the service center concerning a premium processing service request that I filed?	▼
Will USCIS also expedite my Form I-539, Application to Extend/Change Nonimmigrant Status, if I submit it with my Form I-129, Petition for a Nonimmigrant Worker?	▼

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Last Reviewed/Updated: 06/18/2024